

**MAINS MASTER PROGRAM (MMP) 2024****POLITY – 3****STRUCTURE, ORGANIZATION AND FUNCTIONING OF THE EXECUTIVE AND THE JUDICIARY—MINISTRIES AND DEPARTMENTS OF THE GOVERNMENT**

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**President****a) Constitutional position of the President****➤ Constitutional Provisions**

- ✓ Art.52 – There shall be a President
- ✓ Art.53 – executive power vested upon the president which may be exercised directly or indirectly
- ✓ Art.74 – Aid & advise binding upon the president

**➤ Debates in Constituent Assembly**

- ✓ British Parliamentary or American presidential system
- ✓ British Parliamentary but an elected president [Indirect]
- ✓ President - Constitutional or ceremonial or figurehead

**➤ Discretionary Powers – Constitutional & Situational****➤ Constitutional Discretion**

- ✓ Art.74 – President can disagree or send it for reconsideration any decision taken by the cabinet. [44<sup>th</sup>, 1978]
- ✓ E.g., President K.R Narayanan – sending the advice of the cabinet on imposing president rule in U.P & Bihar in 1997 & 1998 respectively for reconsideration.

**➤ Situational Discretion**

- ✓ Hung Parliament
- ✓ Appointment of PM on sudden death
  - E.g., Rajiv Gandhi appointed PM on death of PM Indira Gandhi
- ✓ Dissolution of Lok Sabha when the confidence in the lok sabha is lost [No Confidence]
- ✓ Exercise of Veto Powers [Absolute Veto – Private member bill or CoM's lost majority etc.]

**➤ Supreme Court on the Position of the President**

- ✓ U.N.R Rao case – even after the dissolution of lok sabha the CoM's continue to exist in caretaker capacity
- ✓ Shamsher Singh – president to act on the aid & advice given by the **cabinet**

**➤ Way forward**

- ✓ President must live up to his oath
  - Preserve, defend & protect the constitution.
  - Devote to the wellbeing of the people.
- ✓ India needs the President & not president office holders.

**Questions**

1. "The President of India is a mere rubber stamp". Do you agree? Substantiate your viewpoint with suitable Arguments.

2. "The President is merely a nominal figurehead. He has no discretionary & powers of administration" Discuss

b) **Ordinance Making power - President & Governors**

➤ **What is an ordinance?**

- ✓ Temporary laws made by the executive
- ✓ Example – National capital territory of Delhi (Amendment) ordinance, 2023

➤ **Constitutional Provisions**

- ✓ **Article 123 & 213** of the constitution – President & Governors
- ✓ Neither of the houses of parliament or the houses of the state legislature is not in session & **urgent situation** arises
- ✓ **Coextensive**
- ✓ must be approved by the legislature **within 6 weeks** after reassembly
- ✓ may **be revoked** anytime by the president & governors

➤ **What are the issues with the ordinance making power?**

- ✓ What may be a situation **which warrants immediate action is not defined?** [Dr. B.R Ambedkar]
  - Need to attract immediate investments [TRAI ordinance]
  - Deadline imposed by courts [Ancient Monuments and Archaeological sites & remains (amendment & validation) ordinance, 2010]
  - Delay by standing committee
- ✓ Violative of **doctrine of separation of powers**
- ✓ **Sub-version of democratic law making**
  - First Lok sabha itself 41 ordinances & approximately around 40 ordinances in 17<sup>th</sup> Lok sabha
  - Bihar from 1967 – 81 more than 256 ordinances issued
- ✓ **Re-promulgation of ordinance**
  - D.C Wadhwa case took cognizance of multiple repromulgation in state of Bihar.

➤ **Supreme Court**

- ✓ **R.C Cooper, 1970**
  - Subject to judicial review
- ✓ **D.C Wadhwa, 1986**
  - Repromulgation was a fraud on the constitutional powers.
  - Ordinance is of nature of extraordinary power can not be substituted for ordinary law-making power entrusted upon the legislature.
- ✓ **Krishna Kumar, 2017**
  - Repromulgation is a fraud on the constitution
  - Whether the president & governors have **relevant material?**
  - Examine whether any oblique motive?

➤ **Way forward**

- ✓ Constituent Assembly debate
  - Dr. B.R Ambedkar – to deal with situations that may suddenly & immediately arise

- ✓ Vigilant judiciary & an executive respecting the idea of separation of powers
- ✓ Not an ordinary law-making power but one which is nature of emergency law making powers upon the executive.

### Questions

1. What do you understand by ordinance? Discuss the issues associated with constitutionalization of ordinance making power entrusted upon the executives in a parliamentary democracy?
2. The ordinance making power is rather an extraordinary power entrusted upon the executives to deal with situation that may suddenly and immediately arise but not a substitute to ordinary law-making powers of the legislature. Do you agree? Give arguments in support of your answers.

### c) Pardoning powers of the President

#### ➤ Constitutional Provisions

- ✓ **Article 72 & Article 161** – Pardon, Commute, Remit, Reprieve & Respite [President & Governors]
- ✓ **President** – Court Martial, Death or Capital Punishment, all cases where executive power of union extends.
- ✓ **Governor** – all cases where executive power of state extends [including power to pardon death sentence]
  - **Supreme Court** – State of Haryana Vs Rajkumar; Perarivalan case

#### ➤ Statutory Provisions

- ✓ **Sec.432** of CrPC - remit sentences by appropriate government
- ✓ **Sec.433** of Crpc - punishment may be commuted
- ✓ **Sec.433A** – remission of life imprisonment can be done only after serving 14 years of jail.
- ✓ **Sec.435** – prisoners sentenced in case based on investigation by CBI or any other central agency or any agency that probed offence under the central act then the state govt. can remit the punishment only in consultation with the central govt.
  - **Case Study: Release of Perarivalan**
    - ❖ Does the governor have to make a reference to the center while exercising his power of remission **under article 161** of the constitution as is required in case exercising the statutory powers of the state govt **under Sec.435 of Crpc**?
    - ❖ **Supreme Court** – The **centers opinion** will have **primacy** if the state government is to remit any punishment **under sec. 435 of CrPC** investigated by a central agency under a central act. However, this **power does not extend** in case of exercise of **power under article 161**.

#### ➤ Supreme Court Judgements

- ✓ **Maru Ram, 1980**
  - Aid & advice binding upon the President & the Governors
- ✓ **Kehar Singh, 1998**
  - Pardoning powers subject to **Judicial Review** to avoid miscarriage of Justice

- ✓ **Epuru Sudhakar Vs A.P, 2006** (Judicial Review – Grounds)
    - Lack of application of mind
    - Malafide or arbitrary grounds
    - Passed with extraneous or wholly irrelevant grounds.
  - ✓ **Shatrughan Chauhan, 2014**
    - Inordinate, undue & unreasonable delay in disposing mercy petitions amounts to torture and violation of fundamental right to life & liberty
    - Ground for commutation of death sentence to life imprisonment
  - ✓ **Remission in Bilkis Bano case**
    - Background – 2008 punished with life imprisonment by CBI court in Maharashtra
    - Convicts applied for remission under statutory provisions & were released as they completed 14 years of Imprisonment [Sec.433A]
    - Supreme court struck down the release on following grounds in 2024
      - ❖ Appropriate govt. would mean sentencing govt. & not were the incident happened
      - ❖ **No right to be prematurely** released on completion of 14 years of jail [Sangeet Vs State of Haryana]
      - ❖ Does the crime affect the individual or **larger conscience of the society?** [Laxman Naskar Vs UoI]
- **Way Forward**
- ✓ Judicial powers to president or Governors to **rectify judicial errors** or miscarriage of justice.
  - ✓ Due attention to be taken to prevent **inordinate delay** in taking decisions & prevent violation of fundamental rights.
  - ✓ **Aggravating & Mitigating** factors may be considered
    - Aggravating factors – factors that increase the severity of a criminal act
    - Mitigating factors – factors that lessen the degree of criminal culpability
    - A case study of Sarans Commutation – Dr. Rajendra Prasad.

### Questions

1. What are the clemency powers entrusted upon the President & the Governors under the constitution of India? Do the statutory powers to remit punishment entrusted upon the appropriate governments under the ordinary laws in any affect the constitutional powers given to the governors under Article 161? Substantiate your point of view citing relevant judgements. [15 Marks]
2. What do you understand by the pardoning powers? Can inordinate in deciding the mercy plea by the president be a ground for commuting the death sentence? Comment.

## Emergency Powers of the President

### ➤ National Emergency

- ✓ Art.352 – War, external aggression & armed rebellion [Internal disturbance – 44<sup>th</sup>, 1978]
- ✓ President satisfaction – security of India threatened
- ✓ Written recommendation of cabinet
- ✓ approval - within one month
- ✓ Extension - indefinite period if approved every 6 months
- ✓ special majority.
- ✓ Proclamation may be revoked by President at any time or Lok Sabha passes a resolution to that effect by simple majority.

### ➤ Consequences of National Emergency

#### ✓ Executive, Legislative & Financial Relationship

- Executive – Centre can give any executive direction to the state
- Legislative – Parliament shall have the power to make laws on an item in the state list.
- Financial powers – centre can unilaterally alter the distribution of revenue between centre & states

#### ✓ Suspension of Fundamental Rights

- Article 358 – Automatically suspends article 19, but only in case of War & External aggression.
- Article 359 – Suspension of F. R's done through a Presidential order (Except article 20 & 21)

#### ✓ Effect on Life of Legislatures

- Extend the life of lok sabha & state legislative assembly one year at a time but indefinitely by law made by parliament.

### ➤ State Emergency

- ✓ Article 356 – Empowers President impose President rule (state administration not carried out accordance with provision of constitution)
- ✓ Example – CoM's lost majority, disturbance to public peace and order, against secular values etc.

### ➤ S.R Bommai Case, 1994

- ✓ Judicial review [Malafide]
- ✓ Relevant material [Constitutional Breakdown]
- ✓ Legislative assembly not to be dissolved
- ✓ Courts can ensure complete justice

### ➤ Consequence of President Rule

- ✓ Executive Relationship - All executive authority is taken up by the president.
- ✓ Legislative Relationship – The legislative powers of the state shall be exercisable by or under the authority of the parliament or confer power upon the president.

### ➤ Financial Emergency

- ✓ **Art. 360** – Financial stability or credit of India is under threat.
- ✓ Declaration to be approved within 2 months by the house of Parliament.
- ✓ Once approved continues indefinitely till revoked (simple majority).

- ✓ May be revoked by President at any time (no need for Parliamentary approval)

➤ **Consequences**

- ✓ The union government may give directions to the state to observe canons of financial propriety.
- ✓ Reduction in salaries on all or any class of person serving in the state government.
- ✓ Reservation of money bills or financial bills for the consideration of the President.
- ✓ Reduction in salaries & allowances of all classes of persons serving in the central government including judges of Supreme Court and High Court.

**Question**

1. What are circumstances under which national, State & financial emergency can be proclaimed? What are the implications of such proclamations?

**Vice – President of India**

➤ **Constitutional Provisions**

- ✓ Art.63 – There shall be a vice-president
- ✓ Art.64 – Vice-President to act as ex-officio chairman of Rajya sabha
- ✓ Art.65 – Vice-President to act as president during casual vacancy or absence of president.
- ✓ Art. 90 – Removal by effective majority
- ✓ Art. 92 – while removal motion is pending, he / she shall not preside over the house and not entitled to vote in the house although may be present in the proceedings.

➤ **Powers & Functions**

- ✓ Final authority to decide **conduct of business & decorum**
- ✓ Adjourn the house in case of **lack of Quorum**
- ✓ Final authority to **make & to interpret rules** in the house
- ✓ Exercise **powers to expunge** any part of parliamentary proceedings
- ✓ Power to disqualify on grounds of **Anti-defection law**

➤ **Impartiality & Neutrality of the Chairman**

- ✓ Casting Vote
- ✓ Salary charged on CFI
- ✓ Effective Majority for removal

➤ **Implications in democracy**

- ✓ Final authority to interpret rules & ensure discipline & decorum
  - Forest conservation (Amd) bill, 2023 – Referred to JPC despite repeated request from opposition to refer it to standing committee.
- ✓ Suspension of MP's
  - Rule 256 – suspension of MPs for unruly behaviour
- ✓ **Expunging power of parliamentary proceedings**
  - Mr. Kharge's remarks on PM expunged by Chairman RS
- ✓ Final authority to disqualify members on Anti-defection law

**Question**

1. What are the powers & functions of the Vice-president as the chairman of the Rajya sabha?

## State Executive – The Governor

### ➤ Constitutional Provisions

- ✓ Art.153 – Governor
- ✓ Art.155 – Appointed by the president
- ✓ Art.156 – Pleasure of the president
  - B.P Singhal case, 2010 – pleasure of the president is subject to judicial review on malafide grounds.
- ✓ Art.163 – aid & advice of the CoM's except where he can **exercise his discretion**
- ✓ Art.200 – Assent to bills
  - Give assent to bills
  - Withhold assent to bills & send it for reconsideration as soon as possible
    - ❖ **State of Punjab Vs Principal secretary to Governor Punjab, 2023**  
[Supreme Court of India]
  - Send it for reconsideration [if not a money bill]
    - ❖ **6 months** [Sarkaria & Punchhi]
  - Reserve it for the consideration of the president
    - ❖ **Mandatory** – when any bill derogates the power of the high court concerned.
    - ❖ **PDT Achary** [Former secretary general – Lok sabha]
      - Governors shall not reserve bills on item in the state list
      - Shall not reserve bills on an item in the concurrent list unless it is repugnant of central laws. [Art.254 – makes state law invalid in case of repugnancy with central Law]
- ✓ Art.356 – Report to president in case of **constitutional breakdown** in states.

### ➤ Supreme Court on the discretionary power of the Governors

- ✓ **Shamsher Singh, 1984**
  - Withholding or rejecting bills is not the discretionary power of the governor.
- ✓ **B.P Singhal, 2010**
  - Pleasure of the president is subject to judicial review on grounds of malafide exercise of power.
- ✓ **Nabam Rebia Case, 2016**
  - Governor has no power to advance the session of the house on his own
- ✓ **State of Punjab Vs Principal secretary to Governor Punjab, 2023**
  - President power to withhold the bill is not a discretionary or independent power it has to be coupled with sending it for reconsideration as soon as possible.

### ➤ Way Forward

- ✓ **Sarkaria Commission**
  - Governor should be detached figure from politics & outsider
- ✓ **Punchhi Commission**
  - Removal through impeachment
  - Fixed tenure
  - Appointment in consultation with chief minister
- ✓ **Federalism basic structure** & governor should not undermine the elected government.
- ✓ **Constituent Assembly**

- Unity & Integrity of the nation [Secessionist]
- ✓ **Constitutional Experts**
  - Role is largely ceremonial [Appointment or Oath] which can be performed by the Chief Justice of the concerned high court or the speaker.

### Questions

1. The Governor under our parliamentary system though the executive head of the state, his role is only nominal. Comment
2. The power of the governor to withhold the bill or send it for reconsideration is not a discretionary power. Do you agree? Cite relevant case laws to substantiate your answer.
3. The position of the governor under the constitution of India is one of ornamental and his powers are limited & nominal. Comment

### Attorney General of India

#### ➤ Constitutional Provisions

- ✓ Art.76 – Appointed by the President
- ✓ Eligibility – to be appointed as judge of supreme court
- ✓ Holds office during the pleasure of the president
- ✓ Service conditions & remuneration decided by president

#### ➤ Duties & responsibilities

- ✓ Highest law officer & legal advisor of the govt.
- ✓ Represent GoI in court of Law [Rafael case, Electoral Bond etc.]
- ✓ Represent GoI on any reference made by the president to supreme court under article 143
- ✓ Performs any other duty of legal character conferred upon him by any other law
- ✓ May take part in parliamentary proceedings, committees etc.

#### ➤ Immunities & Privileges

- ✓ Right to be audience in any court in India
- ✓ Privileges & Immunities as a member except the right to vote

#### ➤ Limitations

- ✓ Hold brief against the government although he is not barred from private practice.
- ✓ Accept directorship of any company without permission of the govt.

### Questions

1. The Attorney General is the highest law officer & chief legal adviser of the government of India. Comment
2. Though the attorney general is the highest law officer & chief legal advisor of the government they are bound by an element of lawyer-client relationship. Do you agree?

### Council of Ministers

#### ➤ Constitutional Provisions

- ✓ Article 75 – PM & CoM's shall be appointed by the president
- ✓ Hold office during the pleasure of the president
- ✓ Collectively responsible
- ✓ Not more 15% of the size of the Lok sabha [91<sup>st</sup>, 2003 – NCRWC]

- **Classification of Ministers**
  - ✓ Cabinet
  - ✓ Minister of state [Independent Charge]
  - ✓ Minister of State [Without independent charge]
- **Arguments in favour of larger cabinet**
  - ✓ Inclusive decision making
  - ✓ Accommodative politics [Religious, Caste, Region – NDA regime etc.]
  - ✓ Coalition Compulsions [UPA regime – 2004 to 2014]
- **Against larger cabinet**
  - ✓ less efficient
  - ✓ delay in decision making [First PM Nehru – 15-member cabinet]
- **Way forward**
  - ✓ Collective decision making & not centralised decision making
  - ✓ Post of parliamentary secretaries to be abolished
  - ✓ Minimum government & maximum governance

### Question

1. There are constitutional & political factors play an important role in determining the size of council ministers in the union government. Discuss

## The Judiciary

### Judicial Appointments

- **Constitutional Provisions**
  - ✓ Art. 124 – President shall appoint judges of supreme court in consultation with CJI & such judges of supreme court & high courts
  - ✓ Art, 217 – President shall appoint judges of high court in consultation with CJI, governor of the state & CJ of the concerned high court.
  - ✓ Present system – Collegium system [Three Judges Cases]
- **What is Collegium System?**
  - ✓ A system of appointment of Judges to Higher Judiciary, where judges appoint judges.
- **First Judges case, 1981**
  - ✓ Consultation does not mean concurrence.
  - ✓ Primacy to the Executive.
- **Second Judges case, 1993**
  - ✓ Collegium system evolved (CJI + 2 senior most judges)
  - ✓ Primacy to CJI
  - ✓ Independence & Integrity
- **Third Judges case**
  - ✓ consultation with Plurality of Judges [CJI + at least 3 senior judges in collegium should concur]
  - ✓ Chief Justice of India + Four Senior most judges
- **99<sup>th</sup> Constitutional Amendment, 2014 [NJAC]**
  - ✓ Commission to replace collegium system of appointment & transfer of high court judges

- ✓ Composition – CJI + 2 Senior most judges; Law Minister (ex officio); 2 eminent personalities
- ✓ Eminent personalities to have veto powers
- ✓ Supreme court declared the amendment violative of judicial independence which constitutes the basic structure. [Fourth Judges case]
- **Criticism of collegium system**
  - ✓ Not founded on the constitutional text
  - ✓ Opaque & completely non-transparent
  - ✓ No Objective criteria for selecting judges
  - ✓ Not representative of the social fabric
  - ✓ Lack of accountability
  - ✓ Violative of separation of powers doctrine
- **Arguments favour of collegium system**
  - ✓ Judicial Independence
  - ✓ Committed Judiciary against interest of democracy & liberty of citizens
  - ✓ Best possible method presently [CJI DY Chandrachud]
- **Way Forward**
  - ✓ National Judicial Commission – [Judiciary, Legislature, Executive & Public – representation] without giving any upper hand to executive – 2<sup>nd</sup> ARC, LCI & NCRWC.
  - ✓ World Comparisons – U.K, USA, Germany etc.
  - ✓ Memorandum of Procedure & Judicial secretariat – proper screening of eligible candidates
  - ✓ Representative Institution [SC, ST, OBC, Religious Minorities & Women]
  - ✓ Judicial Accountability can go long way in ensuring justice to the people.

### Questions

1. “The scheme of the constitution requires the court to be final arbiter on the position of law enacted by the parliament”. Analyse the above statement in the context of view taken by the Supreme Court in striking down the National Judicial Appointments Commission enacted by the 99<sup>th</sup> constitutional amendment act, 2014.
2. Critically analyse the collegium system of appointment to higher judiciary in India.

### Judicial Independence a pre-requisite for healthy democracy

- **Judicial Independence**
  - ✓ An idea that the judicial organ functions independently of the other organs of the state.
  - ✓ Judiciary has the power to review the actions of the other two organs i.e., the legislature & the executive in accordance with the constitutional provisions
  - ✓ Natural corollary of doctrine of separation of powers
  - ✓ Part of basic structure [4<sup>th</sup> Judges case]
- **Constitutional Provisions**
  - ✓ Art.124 & Art. 217 – Appointment of Judges
  - ✓ Removal of Judges – Special Majority
  - ✓ Salary – Charged upon the consolidated fund
  - ✓ Contempt Powers
  - ✓ Ban on practice post retirement [Supreme Court – Judges]

- ✓ Wide Jurisdiction & powers [E.g., - SLP, Art. 142 – complete justice, Writ powers, Original Jurisdiction, Highest court of appeal etc.]
- Judicial independence as a pre-requisite for democracy
  - ✓ Free & fair elections
    - Election disputes under RPA, 1951; Raj Naraian Case, 1975
  - ✓ Rights & liberties of ordinary men & women
    - Shreya Singhal case, 2015; Justice K.S Puttaswamy, 2017
  - ✓ Good Governance
    - E.g., Writ of mandamus - during covid to arrange transport for migrants.
  - ✓ Judicial Activism
    - E.g., - Maneka Gandhi, 1975; Vishaka Guidelines etc.
  - ✓ Transformation of society
    - E.g., - addressing social inequality & injustice historically ignored; Decriminalising sec.377 IPC, decriminalising sec.497 of IPC etc.
- Way forward
  - ✓ Judicial independence is part of basic structure
  - ✓ Constitutionalism to prevail judicial independence is must
  - ✓ Judicial accountability & efficiency must be coupled with independence

### Questions

1. Do you think judicial independence is a prerequisite to ensure constitutionalism? Analyse
2. Constitutionally guaranteed judicial independence is the key to ensure proper functioning of our democracy. Comment

### Removal of the Judges - higher judiciary

- Removed by an order of President on the recommendation of the Parliament
- Motion to be passed in the same session
- Misbehavior or incapacity
- Special majority in both the houses
- **Judges Enquiry act, 1968**
  - ✓ Motion - either house.
  - ✓ Signed by 100/50 - Lok Sabha / Rajya Sabha (Speaker or Chairman – Subject to approval)
  - ✓ Investigated by Committee of Three
    - E.g., Justice V Ramaswami removal motion defeated in Lok Sabha in 1991.

### Question

1. One of the reasons to make the removal process of the judges of the higher judiciary difficult, is to ensure judicial independence. Explain the process through which the judges of the higher judiciary can be removed?

### Jurisdictions & Powers – Supreme Court

- **Jurisdictions of the supreme court**
  - ✓ Original
  - ✓ Appellate

- ✓ Writ
- ✓ Special Leave
- ✓ Advisory
- **Powers of the supreme court**
  - ✓ Review powers
  - ✓ Contempt powers
  - ✓ Rule Making
  - ✓ Extraordinary powers
  - **Way Forward**
  - ✓ Judicial Independence & accountability is the key
  - ✓ Judicial reforms long pending

#### Question

1. The supreme court of India has extensive jurisdiction & vast powers entrusted upon it as the custodian of the constitution. Comment

#### Judicial issues & Reforms

##### ✓ Issues in Judiciary

- Huge Pendency of cases [4.7 crore cases; justice delayed is justice denied]
- **Favoritism & Nepotism** in judicial appointment
- Lack of **accountability & transparency** in judiciary
- Inadequate of **physical & digital infrastructure** [e.g., covid 19 – highlighted importance of virtual hearing]
- **Inequality of representation** [high Courts – 11.5 %; Supreme Court – 3 judges < 10%]
- **High Vacancy** [35% post vacant in subordinate judiciary; 40% high courts; Judges to population ratio one of the lowest – 20 judges per million]
- **Poor Quality of Judges & Judgements**
- **Complexity of Judicial procedure** [Justice Malimath Committee]
- Limited use of **Alternate Dispute Resolution**

##### ✓ Reforms Required

###### ➤ **Judicial Accountability**

- National Judicial Commission – 2<sup>nd</sup> ARC [Judiciary + Legislature + Executive]
- Judicial Standard & accountability bill [Assets, Liabilities etc.]
- Independent Judicial complaints committee [Violation of conduct, corruption charges etc.]

###### ➤ **Pendency of cases**

- Filling the vacancies on regular basis
- Increase in age of retirement [65 & 70 years respectively for supreme court & high courts – standing committee report, 2023]
- Vacation in courts as per rotational policy – Parliamentary standing committee report, 2023
- Impose **adjournment cost** in all cases without reasonable justifications.
- Reforms in criminal justice system

###### ➤ **All India Judicial Service**

- **Constitutional & cessation benches [Court of Appeal]**
  - 18<sup>th</sup> Law Commission – 4 regional benches
- **Social diversity in Judiciary**
  - High Courts – Scheduled caste & scheduled tribe representation is 3% & 1.5% respectively.
  - No women Chief Justice till this point.
- **Infrastructure & e-courts**
- **Mandatory annual reports for high courts** [standing committee report, 2023]
- **More emphasis on Alternate dispute resolution mechanism**
  - Lok Adalat, Gram Nyayalayas etc.

### Questions

1. “Justice delayed is justice denied”. In the context of the above statement suggest some measures to address the pendency of cases in the Indian judicial system.
2. The judiciary is not only the guarantor, but also the final arbiter of various disputes affecting the rights & liberties of the people. In this context suggest various reforms that would enable the courts to discharge their constitutional mandate effectively.